

1 ENGROSSED SENATE
2 BILL NO. 2026

By: Hines of the Senate

3 and

4 Miller of the House
5

6 An Act relating to counties; amending 19 O.S. 2021,
7 Section 270, which relates to confidentiality of
8 Department of Defense Form 214; authorizing
9 grandchildren of veterans to view certain military
10 discharge papers; updating statutory reference; and
11 providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 19 O.S. 2021, Section 270, is
14 amended to read as follows:

15 Section 270. A. The county clerk shall keep any ~~Department of~~
16 ~~Defense Form 214 (DD Form 214)~~ military discharge papers filed with
17 the clerk, including any ~~DD Form 214~~ military discharge papers that
18 ~~was~~ were filed before ~~the effective date of this act~~ July 1, 2002,
19 separate from records available for public inspection and shall not
20 make ~~the DD Form 214~~ military discharge papers available to any
21 person except as provided in this section. A record of the names of
22 veterans who have filed ~~DD Forms 214~~ military discharge papers with
the clerk shall be made available for public inspection.

23 B. The county clerk may authorize the viewing or copying of a
24 veteran's ~~DD Form 214~~ military discharge papers only by the veteran,

1 the veteran's spouse ~~or~~, child, or grandchild, a guardian for or a
2 person having power of attorney for the veteran, spouse, ~~or~~ child,
3 or grandchild upon presentation of a court order showing the
4 appointment, the executor or administrator of the estate of the
5 veteran or spouse upon presentation of a court order showing the
6 appointment, a representative of the United States Department of
7 Veterans Affairs, a funeral director upon presentation of a contract
8 signed by the person responsible for the funeral costs for the
9 veteran, or a person authorized by the court to view or copy ~~the DD~~
10 ~~Form 214~~ military discharge papers upon presentation of the court
11 order. The clerk shall record the names and addresses of all
12 persons viewing or copying ~~a DD Form 214~~ military discharge papers.

13 C. A county clerk shall not be liable or responsible for any
14 harm or damages that may occur as a result of any person obtaining,
15 copying or viewing ~~a DD Form 214~~ military discharge papers.

16 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 26th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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9 Presiding Officer of the House
10 of Representatives